

24STCV27934 24STCV27934

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-18

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Case Number: 24STCV27934 Hearing Date: August 18, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Eduardo Martinez

;

Plaintiff,

vs.

Casuda Canyon Restaurant

Co.

;

Defendants.

Case No.:

24TSCV27934

Hearing Date:

August 18, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion

for Approval of PAGA settlement

MOVING PARTY: Plaintiff Eduardo Martinez

RESPONDING

PARTY: No response.

Motion for Approval

of PAGA Settlement

The court considered the moving papers filed in connection with this motion. No opposition was filed.

DISCUSSION

Plaintiff Eduardo

Martinez, as an aggrieved employee and on behalf of all other aggrieved employees under the Labor Code Private Attorneys' General Act of 2004

("Plaintiff"), seeks an order approving the settlement of their claims

under the Labor Code Private Attorneys General Act of 2004 (Labor Code, §2698, et seq.) ("PAGA"), set forth in the "PAGA Settlement Agreement" (the "Settlement Agreement") entered into by and between

Plaintiff, on the one hand, and defendant Casuda Canyon Restaurant Corporation ("Defendant"), on the other hand.

The court denies

the motion without prejudice because Plaintiff has not provided the court with any evidence establishing the total number of aggrieved employees who would be affected by this settlement. Without this information, the court cannot assess the reasonableness of this \$95,000 settlement. A recitation of the number of pay periods is not a substitute for the number of aggrieved employees.

ORDER

The court denies
plaintiff Eduardo Martinez's motion for approval of PAGA settlement without
prejudice.

The court orders plaintiff
Eduardo Martinez to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 18, 2026

Robert B. Broadbelt III

Judge of the Superior Court